entered as their verdict. (e) And in 11 H. 4. in conspiracy against two the inquest found one guilty, [212] and it was there said that their verdict was contrary in itself, for a conspiracy cannot be but between two at least, and if the one is not guilty the other is not guilty; for which reason they were sent back, and afterwards they came again and said that both were guilty, and this was received as their verdict. So that upon occasion they may contradict their † first saying, and if they may vary from or contradict their first saying in open Court, *a fortiore* they may do it upon better advice when their first verdict was given out of Court, and they not discharged, for they were not out of the custody of the bailiff, but always under his custody, as the record shews. And although the *postea* contains that they were sent back to the place from whence they came, to eat and drink together if they would, yet it was not found by the *postea* that they did eat and drink indeed, and it shall not be taken that they did so, inasmuch as it is not shewn by the record, nor averred by the party. Wherefore their open verdict in Court was taken to be their verdict by the opinion of the whole Court. And so it was afterwards adjudged, as appears by the record here.

At which day here came as well the aforesaid William Saunders as the aforesaid George and Joan, by their attornies aforesaid. And thereupon the premisses being seen, and by the justices fully understood, it is considered that the aforesaid William Saunders (if he will) may prosecute for having his seizin of the tenements and rent aforesaid with the appurtenances, against the aforesaid George and Joan, by occasion of the claim and plea aforesaid forfeited: and also that the fine aforesaid (if he will) shall be engrossed. And the aforesaid George and Joan in mercy, &c.

A Report of the Opinions of divers of the Judges and others learned in the Law hereunder named, in a Case depending in the Court of the Dutchy of Lancaster, wherein many Things appear concerning the Estate and Degree of the said Court, and of the Lands of the same Dutchy, as well as of the Person of the present Queen, in Relation to the Dutchy, and of the Kings that have heretofore inherited the Dutchy.

Mich. Term. 4 Eliz. A lease under the dutchy seal of land parcel of the dutchy made by King Edward 6. within age, to commence after the end of a former lease *in esse*, is good, and not avoidable by reason of his nonage. S. C. Dy. 209. pl. 22. 4 Inst. 209, 210. Crompt. J. C. 134 b. Vin. Abr. tit. Prerogative, M. b. 4. pl. 2.

On the morrow of the term of St. Michael, viz. on the eve of St. Andrew the Apostle, in the 4th year of the reign of Queen Elizabeth, Dyer, Chief Justice of the Common Bench, Saunders, Chief Baron of the Exchequer, Rastal, one of the Justices of the King's Bench, and also one of the Justices of Assize in the County Palatine of Lancaster, Anthony Brown, one of the Justices of the Common Bench, Corbet, one of the Justices of the King's Bench, Weston, one of the Justices of the Common Bench, Frevil, one of the Barons of the Exchequer, Carus, Queen's Serjeant, Puttrell, Serjeant, who was the other Justice of Assize in the said County Palatine of Lancaster, Gerard, the Queen's Attorney, Ruswel, the Queen's Solicitor, Carell, apprentice, Attorney of the Dutchy, and Plowden, apprentice, who was one of the counsel of the said Court, by the Queen's command assembled at Serjeant's-Inn, in Fleet-street, to confer together in order to understand the law in a certain case which was depending in the said Court between the Queen on the one part, and divers of her subjects severally on the other part, wherein the Queen required their resolution upon the matter in law. And the case was delivered to them in writing in

(e) M. 11 H. 4. 2. pl. 3. Fitz. Verdict, 18. Bro. 12. Conspiracy, 13. Judges, 3. Jurors, 7. Vin. Abr. tit. Trial, E. g. pl. 4.

† So in Dy. 204. pl. 3. to part the jury gave a verdict at the Bar for the defendant, and being remanded to enquire of the rest, they came again and changed that verdict, (of their own accord without being put to it by the Judge) and with the rest gave for the plaintiff, which was received.

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this manner. King Henry 8. being seized of certain lands in right of his Dutchy of Lancaster, made a lease to W. C. by the advice of the counsel of the said dutchy, and under the dutchy seal, for the term of 21 years, and died, after whose death King Edward 6. by like advice made a lease to R. W. of the same lands for the term of 21 years, to commence immediately after the expiration, forfeiture, surrender, or other determination of the first term, the same King Edward 6. then being within the age of 21 years. The question was, if the present Queen shall be bound by this lease made by King Edward 6, or if she shall avoid it by reason of the nonage of the said King Edward 6. And this case was argued in the Dutchy Chamber in the time of Queen Mary, when Sir Edward Waldegrave, Knight, was Chancellor of the Dutchy, on a demurrer upon the point between John Scudamore, plaintiff, and Lady Mary Morgan, late wife of Sir Richard Morgan, Knight, deceased, late Chief Justice of the Common Bench, defendant, upon a lease of lands in the county of Monmouth, parcel of the dutchy: but it was not adjudged in the time of Queen Mary. And the Judges and others above-named now considered first what the common law was in this case, and then what was the purport of the statutes made concerning the dutchy, all which they pursued. **[213]** And this the greatest part of them (as well as Sir Robert Catline, Chief Justice of England, who was now sick) had done twice before in Michaelmas term, in the second and third years of the present Queen, viz. once at the same Serjeant's-Inn, and the other time at Spooner's-Hall, in Fleet-street, being there assembled for the same cause, at which places they had debated the matter at large, and by their several arguments at Spooner's-Hall they had shewn their opinions. And the greatest part of them then, and all of them now assembled, except Ruswel (who had but little time to consider the matter) unanimously agreed that the Queen should not avoid the lease made by King Edward her brother, by reason of his nonage. For first of all they agreed, (a) that by the common law no act which the King does as King, shall be defeated by his nonage. (b) For the King has in him two bodies, viz. a body natural, and a body politic. His body natural (if it be considered in itself) is a body mortal, subject to all infirmities that come by nature or accident, to the imbecility of infancy or old age, and to the like defects that happen to the natural bodies of other people. But his body politic is a body that cannot be seen or handled, consisting of policy and government, and constituted for the direction of the people, and the management of the public-weal, and this body is utterly void of (c) infancy, and old age, and other natural defects and imbecilities, which the body natural is subject to, and for this cause, what the King does in his body politic, cannot be invalidated or frustrated by any disability in his natural body. And therefore his letters-patent, which give authority or jurisdiction, or which give lands or tenements that he has as King, shall not be avoided by reason of his nonage. (d) And hereupon was alledged what Thorp saith in 26 Ass. that "the King's gift shall not be defeated by his nonage, and so have many peers and sages of the realm said." (e) And also it was said, it appears in 6 Ed. 3. that the same King Edward 3. brought a writ of right of a manor, as heir to King Richard, and there it was pleaded that the King was within age, judgment if during his nonage he should be received to this writ, and the exception was not allowed, for which reason the tenant demanded the view and had it. By which cases it appears that the nonage which the King has in his natural body, shall not blemish or defeat the acts or suits which he does or pursues in his body politic.

Further, as to the things which he has in his body natural, they took the law to be, (f) that if the King has land by descent, on the part of his mother or other

(a) H. 1 Ed. 6. Bro. Age, 52. 78. Prerogative, 132. B. N. C. § 373. Kelw. 138. pl. 2. 5 Co. 27 a. 7 Co. 12 a. *Calvin's case.* Co. Litt. 43 a. Pref. to 2 Inst. 1 Rol. Abr. 728 A. 1 Finch. 57. 2 Finch. 82. 3 Bac. Abr. 123. 305. Vin. Abr. tit. Enfant, A. pl. 2. *post* 364 (m).

(b) 7 Co. 10 a. *Calvin's case. post,* 234 (a).

(c) The King is always adjudged in law of full age, and infancy shall not be presumed in him, Crompt. J. C. 134 b. 1 Finch. 57. *post,* 216 (c).

(d) 26 Ass. pl. 54. Fitz. Enfant 15. Bro. Age 34.

(e) M. 6 Ed. 3. 50. pl. 49. Fitz. Droit 24. Age 89. Bro. 34.

(f) S. P. Crompt. J. C. 134. b. 1 Finch 57. 2 Finch 82. *infra* (n).

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ancestor, or which he (when King) purchased in fee in the capacity of his body natural, or which he purchased before he was King, if he (being King) gives them to another during his nonage, such gift, by the course of the common law, shall never be defeated by reason of his nonage. For although he has or takes the land in his natural body, yet to this natural body is conjoined his body politic, which contains his royal estate and dignity, and the body politic includes the body natural, but the body natural is the lesser, and with this the body politic is consolidated. So that he has a body natural, adorned and invested with the estate and dignity royal, and he has not a body natural distinct and divided by itself from the office and dignity royal, but a body natural and a body politic together indivisible, and these two bodies are incorporated in one person, and make one body and not divers, that is * the body corporate in the body natural, *et e contra* the body natural in the body corporate. So that the body natural, by the conjunction of the body politic to it, (which body politic contains the office, government, and majesty royal) is magnified, and by the said consolidation hath in it the body politic, for which reason the acts which the King does touching the things that he possesses or inherits in the body natural, require the same circumstance and order as the things which he possesses or inherits in the body politic do; for the thing possessed is not of such consideration as to change the nature of the King's person, but the person who possesses it changes the course of the thing possessed. (g) And therefore it was held, that if the King will part with land in fee, which he has by descent on the part of his mother, or by some other ancestor who was not King, this shall pass by his letters-patent only without other matter, and without livery of seizin, for he cannot make livery of seizin in his body natural, distinct from the body politic, because they are one same body and not divers. So that he cannot do it without doing it as King, and it would be inconvenient and beneath the dignity royal for the law to make the King give livery in proper person to a subject. (h) And besides livery of seizin is matter of fact, which the King cannot do, (i) for his acts ought to pass by matter of record, which is suitable to His Majesty, and therefore the land shall pass by the King's letters-patents only by the course of the common law. And so it has been the practice with regard to the lands which descended to the King from the Duke of York, the Earl of March, and others of the King's ancestors, who never were Kings. (k) And also if a man would give land to the King and to his heirs, which he would vest in his body natural, and not in his body politic, the King cannot take this by livery, but it ought to pass to him by deed enrolled or matter of record, *causâ qua supra*. (l) And if the mother or other ancestor of the King makes a lease for life, rendering rent, with re-entry for default of payment, and dies, so that the reversion descends to the King, if the rent be in arrear, he shall re-enter without demand, for he is not bound by law to make demand in his proper person, *causâ qua supra*: (m) but the breach of a condition ought to be found by office before the entry of the King. (n) And so if the King aliens land which he had by descent from his mother, he shall not defeat it by reason that he was within age at the time of the alienation; (o) for his body politic, which is annexed

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* Moor 149.

(g) S. P. 1 Keb. 643. 2 Finch 239.

(h) M. 38 H. 8. Bro. Patents 101.

(i) The King cannot take nor part with any thing but by matter of record. M. 37 H. 6. 10. b. per Choke. Dy. 74. pl. 17. 139. pl. 33. Poph. 26. 2 Co. 53. a. Dr. and Stud. lib. 1. cap. 8. fo. 31. 1 Finch 56. 161. 2 Finch 82, 83. *post* 484. 553. 562. Cowel's Inst. 116.

(k) *Vide* M. 37 H. 6. 10. b. per Choke. T. 7 Ed. 4. 17. Fitz. Feoffments 21. H. 29 H. 8. Bro. Faits enrolle 16. Feoffments 69. B. N. C. § 110. 2 Rol. Abr. 204. Z. pl. 1. 2 Finch 232. Vin. Abr. tit. Prerogative Z. c. pl. 1. in margine. *post* 242 (e).

(l) S. P. *post* 243 (s), and see the books there cited.

(m) 5 Co. 52. b. 9 Co. 95. b. Moor 293. 2 Leon. 124. 135. 1 Finch 162. 2 Finch 232. *post* 229 (k).

(n) See *supra* (f).

(o) Co. Litt. 43. b. Moor 149, 150. T. Raym. 90. *post* 238 (b).

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